

Smt H D Bhagya vs Sri T K Dharanesh on 23 February, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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M.F.A.No.8567 of 2015

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 23RD DAY OF FEBRUARY, 2023

PRESENT

THE HON'BLE MR JUSTICE ALOK ARADHE

AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A PATIL

MISCELLANEOUS FIRST APPEAL NO.8567 OF 2015

BETWEEN:

SMT. H.D. BHAGYA,
AGED ABOUT 52 YEARS,
W/O T.K. DHARANESH,
R/AT C/O. H.S. DODDAIAH,
3RD CROSS, VALLABHAI ROAD,
HASSAN-573201, HASSAN DIST.

... APPELLANT

(BY SRI. RAGHAVENDRA A KULKARNI, ADVOCATE)

AND:

Digitally
signed by
GAYATHRI N
Location:
HIGH COURT
OF
KARNATAKA

1 SRI. T.K. DHARANESH,
SINCE DECEASED

BY LEGAL REPRESENTATIVE

SRI. T.D. CHANDAN,
S/O LATE T.K.DHARANESH,
AGED 24 YEARS,
R/AT C/O. H.S. DODDAIAH,
3RD CROSS, VALLABHAI ROAD,
HASSAN 573201, HASSAN DISTRICT.

2. SMT. SARASWATHI,
W/O LATE SRI. K. DHARANESH,
AGED ABOUT 49 YEARS,
R/AT KAMALAPURA VILLAGE,

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M.F.A.No.8567 of 2015

KASBA HOBLI, HASSAN TALUK,
AND DISTRICT 573201.

3. SRI. VINAY GANDHI,
S/O LATE SRI. T.T. KARIGOWDA,
AGED ABOUT 57 YEARS,
GANDHI LAW CHAMBER
170, VCN COMPLEX, 1ST MAIN,
SESHADRIPURAM,
BENGALURU 560020.

...RESPONDENTS

(BY SRI. N.S.BHAT, ADVOCATE FOR R2 AND R3;
R1 - DEAD)

THIS M.F.A IS FILED UNDER SECTION 19(1) OF THE
FAMILY COURTS ACT, AGAINST THE JUDGMENT AND DECREE
DATED 30.10.2015 PASSED IN MC NO.230/2013 ON THE FILE
OF THE C/C PRINCIPAL DISTRICT JUDGE, FAMILY COURT AT
HASSAN, ALLOWING THE PETITION FILED U/S 13(A) (ia) (ib)
(vii) OF THE HINDU MARRIAGE ACT.

THIS APPEAL HAVING BEEN HEARD AND RESERVED ON
13.02.2023, COMING ON FOR PRONOUNCEMENT OF
JUDGMENT, THIS DAY, VIJAYKUMAR A PATIL J., DELIVERED
THE FOLLOWING:

JUDGMENT

This appeal is filed by the wife being aggrieved by the judgment and decree dated 30.10.2015 passed in M.C.No.230/2013 on the file of the Family Court, Hassan, whereby the Family Court has allowed the petition of the husband filed under Section 13(1)(ia)(ib)(vii) of the Hindu Marriage Act, 1955 on the grounds urged in the petition.

2. The present appeal is filed by the wife under Section 19(1) of the Family Courts Act, 1984 assailing the said order.

3. Brief facts of the case are that :-

(i) The respondent-husband averred that consent was not obtained from him for the marriage with the appellant and the marriage was not performed as per the Hindu customs and religion. The performance of the marriage was only by exchange of garland between the parties on 06.06.1993. Though neptual ceremony was held at the residence of the parents of the appellant-wife, the marriage was not consummated. The respondent-husband contended that appellant wife stayed in the matrimonial home only for 10-15 days and went away to her parents house. During the said period the appellant-wife has harassed the respondent-husband and his family members and was in the habit of leaving the house without informing any one and after 15 days she left the matrimonial home and all efforts, by the husband to bring back the wife, went in vain and she has threatened to commit suicide if insistence is made to return to matrimonial home, this act of the appellant wife amounts to cruelty.

(ii) The respondent-husband has further averred that immediately after 15 days of marriage i.e., on 06.06.1993, the appellant-wife deserted the respondent-husband and thereafter, she never came back to the matrimonial home nor discharged her duties as a wife resulting in mental agony, pain and suffering and associated diseases like diabetes and blood pressure, which has also affected his kidney and heart. The respondent-husband has further averred that due to such harassment, he lost his job. As the appellant wife left the matrimonial home about 20 years back and completely neglected the respondent- husband, he sought decree of divorce before the Family Court.

4. The appellant-wife appeared before the Family Court through her counsel and opposed the petition by filing written statement contending that petition is not maintainable and specifically denied the averments made in the petition. The appellant-wife averred before the Family Court that their marriage was performed as per the Hindu customs and rituals and she has denied that marriage was not consummated and further denied that she left the matrimonial home within fifteen days. The appellant-wife averred that their marriage was performed, on the same day and in the same place, marriage of the respondent husband's sister's was also performed. She averred that out of wedlock a son named Chandan is born to them on 11.04.1994. It is further averred that about 15 years prior to filing of M.C.No.230/2013 respondent had deserted the appellant wife and their son and therefore, she was living in her parental house in a separate room. She has specifically denied that she left the respondent husband within a period of 15 days, she has denied that she treated her husband and his family members with cruelty. She has specifically averred that no attempt has been by the respondent to take her back to the matrimonial home.

5. The appellant wife specifically denied, the averment that after the marriage for a period of seven years whereabouts of the appellant wife was not known to the husband and he came to know her whereabouts only after receipt of legal notice. Since she averred that the appellant wife and the respondent husband were living in Hassan City, their common relatives and friends were knowing each other. When the appellant's wife's brother tried to hold a panchayat for amicable settlement, the respondent-husband has assaulted him and filed a criminal case, which is registered as C.C.No.442/1995. Hence averment that whereabouts were not known for seven years is denied by the appellant wife, it was further averred that the appellant wife was not having any source of

income, hence left with no other alternative, she got issued legal notice dated 30.06.2005 calling upon the husband to take her to the matrimonial home and without any alternative she has filed the petition under Section 125 of the Code of Criminal Procedure in Criminal Misc.No.85/2005 seeking maintenance. The appellant wife has also initiated proceedings under Section 26(1)(2) of the Protection of Woman from Domestic Violence Act, 2005, which was allowed and the said order has been confirmed in Criminal Appeal No.39/2008.

6. The appellant wife has further averred that she has filed a suit in the capacity of a guardian representing her son for partition of his share in the joint family properties. The appellant wife has specifically denied that she has treated the respondent husband with cruelty, which has resulted in suffering from ill health of the husband. She has further averred that as a counter to the proceedings initiated by the appellant wife, the respondent husband has filed the petition seeking dissolution of marriage on untenable grounds and sought for dismissal of the petition.

7. The Family Court has formulated the points for consideration. The respondent husband has entered the witness box and examined himself as PW.1 and got marked exhibits P1 to P27. The appellant wife has examined herself as RW.1 and not produced any documents before the Court. Both the parties have cross- examined the witnesses.

8. The Family Court after conducting the trial was pleased to allow the petition for dissolving the marriage between the appellant and the respondent by granting decree of divorce and also ordered for permanent alimony of Rs.5.00 lacs to the appellant wife.

9. Being aggrieved by the judgment and decree dated 30.10.2015 passed in M.C.No.230/2013 by the Family Court, Hassan, the present appeal is filed by the wife among the other grounds:-

a. The Family Court has committed error in believing the oral evidence of the respondent husband to come to the conclusion that the marriage between the parties is broken and there is no chance of re-conciliation, even though from the date of issuance of legal notice in the year 2005 the parties are living separately from the matrimonial home.

b. In the absence of material and co-gent evidence, the Family Court has committed error in holding that the appellant wife has voluntarily deserted the respondent husband and it is other way round. The respondent husband threw the appellant wife and their son out of his matrimonial home and neglected to maintain them, which has resulted them to initiate various proceedings against the husband for maintenance etc., c. The Family Court has committed error in understanding the ratio of the Hon'ble Apex Court and the decision of this Court, as well as the decision of the High Court of Rajasthan, which are not applicable to the facts of the present case.

d. The judgment and decree of the Family Court is passed contrary to the evidence on record and based on surmises and imagination without there being any proof of the

allegation and it has come to an erroneous conclusion and has granted meager sum of Rs.5.00 lacs permanent

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alimony without taking into account the various factors like capacity and income of the respondent husband.

10. The appellant wife has filed applications I.A.Nos.1/2018, 2/2018 and 3/2018 under Order 22 Rule 4 read with Section 151 of CPC to bring on record T.D. Chandan, Son of appellant and respondent on record as the legal representative of the deceased husband. As the husband of the appellant died during the pendency of the trial, the proposed legal representative of the respondent husband was served and he does not oppose the applications for bringing him on record, since the right to sue survives in favour of the appellant wife, as she has challenged the decree of divorce. The said applications were allowed and the son was brought on record as a legal representative in the Family Court proceedings.

11. This appeal was heard and disposed of by judgment dated 16.04.2021 by the Co-ordinate Bench. Smt. Saraswathi and Sri Vinay Gandhi, have filed review petition in R.P.No.320/2021 seeking to review the

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judgment dated 16.04.2021 passed in MFA No.8567/2015 contending that during the pendency of the above MFA, Sri T.K. Dharanesh, the respondent herein (deceased) has executed a Will dated 16.03.2016 bequeathing all his properties, which have fallen to his share vide partition deed dated 08.11.1996 equally between the review petitioners. His sister has filed O.S.No.3/2010 against him and other brothers for partition wherein the appellant and respondent herein have claimed that already a partition has taken place as per the partition deed in the year 1996 and they have also initiated other proceedings. The review petitioners claim that they are the legal representatives of the deceased respondent Sri T.K. Dharanesh and have sought review of the judgment on the ground that they were not made parties to the proceedings. The Co-ordinate Bench of this Court has allowed the Review Petition No.320/2021 vide order dated 22.08.2022 and the judgment dated 16.04.2021 passed in MFA No.8567/2015 was recalled and appeal was restored to its file.

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12. We have heard the learned counsel for the appellant and the respondents. Perused the material on record. The respondent husband has sought dissolution of marriage with the appellant wife contending that immediately 15 days after their marriage, the appellant wife left the matrimonial home and she never returned back thereby deserted the company of the husband and stayed with her parents. The respondent husband has further contended that she treated him with cruelty and also ill treated his mother and sisters, thereby on the ground of desertion and cruelty, he has sought

for decree of divorce. The respondent husband has also pleaded before the Family Court that for a period of 7 years after the appellant left the matrimonial home, the whereabouts of the appellant wife were not known to him and on those grounds also he is entitled for decree of divorce.

13. The learned counsel assailing the impugned judgment and decree has submitted that pleadings and evidence

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placed on record by the respondent husband are contrary to each other and opposed to two stray admissions given by the appellant wife and without examining the other circumstances, the Family Court has proceeded to pass the impugned order and prayed for setting aside the impugned judgment and decree.

14. The learned counsel for the appellant has further submitted that though during the pendency of the proceedings, the respondent husband died, right to sue survives in favour of the appellant wife and as the impugned judgment and decree is affecting her rights, she has sought for setting aside of the impugned judgment and decree.

15. The respondent husband has contended that he has not consented for the marriage and marriage was not performed as per the Hindu customs and rituals. He claims that marriage was not consummated, he disputes the paternity of Sri T.D. Chandan. However, in the cross- examination respondent has admitted that on 06.06.1993,

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not only their marriage was performed, but also marriage of respondent's sister was also performed in the same marriage hall.

16. The respondent husband has taken the stand that in the proceedings initiated by the appellant under Section 125 of Cr.P.C and proceedings initiated under Protection of Women from Domestic Violence Act, 2005 the appellant has stayed with him for a period of one year and further he has admitted in the reply to the legal notice sent by the appellant that he is ready to take the appellant wife and son, if they are ready to live a happy married life. The respondent husband alleged that appellant wife was having illicit relationship with another person. However, during cross-examination he admitted that he has no evidence to prove the said allegation.

17. A careful consideration the evidence and cross examination of the appellant wife makes it clear she has categorically stated that their marriage was performed as per the Hindu customs and rituals. During cross-

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examination appellant wife stated that since 20 years, she was living separately from her husband, and relying on such a stray admission, the trial Court has come to the conclusion that it is a ground for desertion and cruelty and that the same has been proved. The case of the appellant is that, appellant lived with the respondent husband and it is the respondent husband, who had forced her to leave the matrimonial home and without any other alternative, she was forced to return to her parental home and thereafter, she started residing with them. The statement of appellant that she is residing separately from 20 years is for the reason that the respondent husband has not allowed her to enter the matrimonial home and hence she was forced to live separately. This aspect has not been properly appreciated by the trial Court, which resulted in incorrect appreciation of evidence and in arriving at incorrect decision. The trial Court has come to the conclusion that there is long duration of desertion, which has amounted to cruelty. The reason for desertion is already considered supra, hence duration of desertion

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cannot be construed as cruelty, unless a specific co-gent acceptable evidence is placed before the Court, that the desertion is voluntary, hence this aspect has also not been properly appreciated the Family Court.

18. The respondent husband has taken a specific ground that appellant's whereabouts were not known to him for a period of seven years. The trial Court has not considered and has not made any discussion with regard to the 3rd ground urged by the respondent husband. The period of seven years or more is to be calculated from the date, on which the cause of action has arisen for seeking decree of divorce. There is no specific pleading nor evidence to establish the said ground that whereabouts of the appellant wife were not known continuously for a period of seven years before the cause of action arose.

19. The appellant wife was forced to leave the matrimonial home along with her son and started living in her parents house from 2005. Hence she was forced to initiate proceedings under Section 125 of the Protection of

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Women from Domestic Violence Act, seeking maintenance. The documentary evidence placed on record goes to show that there are various proceedings initiated between the parties and such being the case, at any stretch of imagination it cannot be accepted that whereabouts of the petitioner are not known for a period of 7 years preceding filing of the petition and there cannot be presumptions contrary to the same. In the cross-examination, respondent husband has admitted that appellant wife and the respondent husband were residents of Hassan having common friends and relatives and during this interregnum period, the brother of the appellant wife tried to hold panchayat and at that time, the respondent husband had assaulted them and managed to get a criminal case registered and the same is numbered as C.C.No.442/1995 against the brother of the appellant. Such being the case, respondent has failed to prove that whereabouts of the appellant wife were not known to him for a period of 7 years, preceding the cause of action and no evidence is placed

contrary to the same. The Family

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Court has failed to appreciate this part of the evidence, resulting in grant of decree of divorce.

20. On examination of pleadings, oral as well as the documentary evidence goes to show that findings of the trial Court are erroneous and not sustainable in law. For the aforesaid mentioned reasons the impugned judgment and decree dated 30.10.2015 passed in M.C.No.230/2013 on the file of Family Court, Hassan, is set aside by allowing the appeal filed by the wife under Section 19 of the Family Courts Act, 1984.

Sd/-

JUDGE Sd/-

JUDGE NG CT: SV